

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 24-14

AIRBOSS DEFENSE GROUP, LLC.,

Complainant

VS.

FEDEX TRADE NETWORKS TRANSPORT & BROKERAGE, INC.,
MEDITERRANEAN SHIPPING COMPANY S.A. and
MEDITERRANEAN SHIPPING COMPANY (USA) INC., as agent for
Mediterranean Shipping Company S.A., and TOTAL TERMINALS
INTERNATIONAL, LLC,

Respondents

URGENT JOINT MOTION FOR EXTENSION OF TIME TO FILE A RESPONSE

Respondents, Fedex Trade Networks Transport & Brokerage, Inc., Mediterranean Shipping Company S.A. and Mediterranean Shipping Company (USA) Inc., as agent for Mediterranean Shipping Company S.A., and Total Terminals International, LLC (collectively “Respondents”) through their undersigned counsel, hereby move for an extension of time to file a response in the above-captioned matter, which is currently due on Friday, May 10, 2024.

Respondents have been diligently gathering documentation in support of their respective responses, but the process has been delayed by the complexity of the matter which involves thousands of charges, and as previously stated, multiple parties and multiple related proceedings pending in Federal Court. Furthermore, the parties have also been diligently working towards a global resolution of this matter and the related proceedings. A meeting of all principals is in the

process of being organized in short order. The parties are well aware of the Commission schedule and commitment in expeditiously resolving the matters brought to its attention.

Respondents respectfully submit that a further 30-day extension is justified and reasonable under the circumstances. The extension will also allow the parties to continue their good faith efforts toward a global resolution and will ultimately promote judicial efficient. We respectfully request that the time to respond to the Complaint be extended to June 10, 2024.

Counsel for Respondents communicated with counsel for Complainant AIRBOSS DEFENSE GROUP, LLC. Opposing Counsel advises that AIRBOSS DEFENSE GROUP, LLC consents to the requested extension.

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Respectfully submitted,

/s/Vincent M. DeOrchis

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Counsel for MEDITERRANEAN SHIPPING

COMPANY S.A. and MEDITERRANEAN

SHIPPING COMPANY (USA) INC., as agent for

Mediterranean Shipping Company S.A.

/s/David K. Monroe

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TRANSPORT & BROKERAGE, INC.

/s/Joseph N. Akrotirianakis

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Counsel for TOTAL TERMINALS

INTERNATIONAL, LLC.

Dated: May 1, 2024

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 1st day of May 2024, the foregoing Urgent Joint Motion for Extension of Time to File a Response was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Chief Administrative Law Judge
judges@fmc.gov

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/s/Kaspar Kielland_____